

PLSC 476: Empirical Legal Studies

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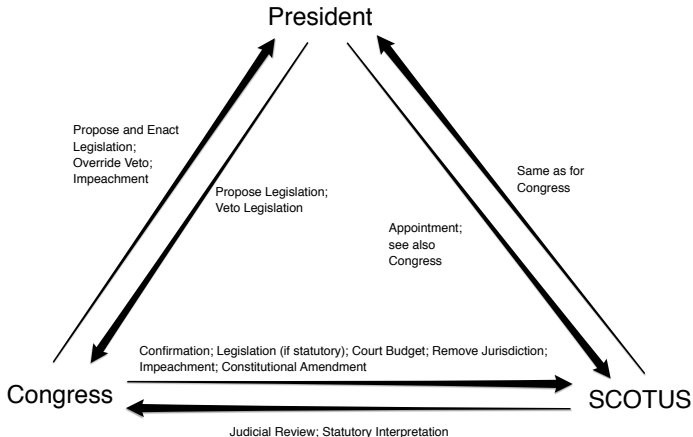
Robert Dahl (1958): "Decision Making in a Democracy: The Supreme Court as a National Policy-Maker."

- Central tension: Representative Democracy vs. Judicial Review
- Noted by many; most famously Alexander Bickel
- Dahl: In reality, this is a non-problem...
 - Presidents get to appoint justices (on average) every two years
 - Justices' views reflect those of the current majority (president + Senate)
 - Justices act on those views
- Conclusion relies on sincere "attitudinal" voting by the justices

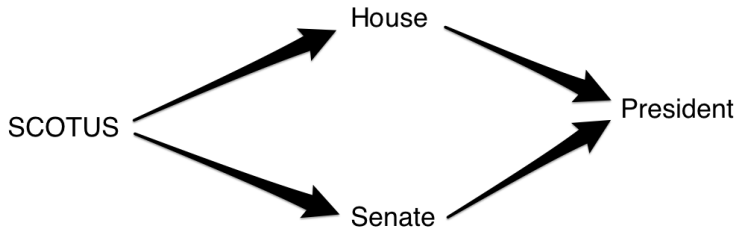
Their theory:

- SCOTUS stays “in line” because of constraints by other branches
- Justices are “strategic” (“sophisticated”)
- This is particularly true in statutory cases

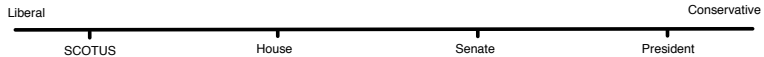
Separation of Powers



Statutory Construction



SOP Examples



If $HP \geq HC$, then Court is free to rule at its "ideal point"



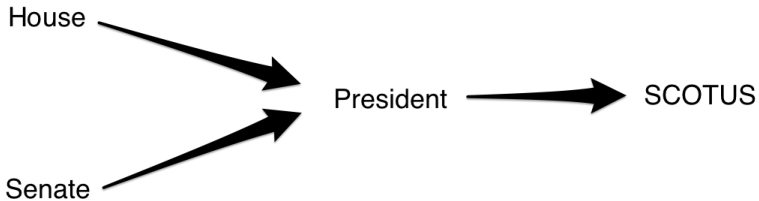
If $HP > HC$, then Court is NOT free to rule at its "ideal point"



Epstein et al. Implications

- When SCOTUS is “near” the ruling coalition, they can behave “sincerely” (and vote their preferences).
- When SCOTUS is “far” from the ruling coalition, they will necessarily shift their decisions in the direction of that coalition.
- Conversely: Dahl predicts “sincere” behavior irrespective of the location of the ruling coalition, once the position of the Court is established.

Judicial Review



Epstein et al. (2001), continued

Q: Does this also work in constitutional cases?

- No: Threat of amendment is low; cost of an unsuccessful attack is slight
- Yes; Constitutional decisions are “stickier” + prescriptive (= more valuable); successful attacks on those decisions are more damaging

Epstein et al.: Analysis

- Examine all constitutional civil rights cases, 1953-1992
- Outcome: Justices' votes (liberal or conservative)
- Predictors:
 - Justice's ideology (Segal-Cover scores)
 - Presidential regime
 - Presidential and Congressional (Senate) Ideology
- Findings:
 - Two selected justices (Black and White) were responsive
 - Moderates' behavior shifted (slightly) with presidential / Senate ideology

Clark (2009): Court-Curbing and Legitimacy

- SOP models (statutory) vs. “court curbing” literature – come to very different conclusions
- Innovation: Court curbing affects decision making not directly, but as a signal of waning judicial legitimacy
- This works because Congress is “closer” to the public than the Court is, and so can send a credible signal about the Court’s public legitimacy
- Result: Study the “...influence of Congressional hostility on the Court’s use of judicial review”

Clark (2009): Model

Model:

- Congress sees the state of the world, while Court does not; Congress can send a signal; Court decides; game ends
- Court prefers to make an unconstrained decision, but also prefers no decision to a wrong one
- Congress prefers to send the “right” signal (electorally speaking) and also has preferences over policy
- PBE: (a) Congress sends “consistent” signal, Court reacts accordingly; (b) Congress always says h , Court always makes constrained decision; (c) both Congress and Court mix over signals and decisions

Clark (2009): Expectations

Hypotheses:

- ① Court will be more likely to make constrained decisions in the face of court-curbing measures
- ② Court will be more likely to make constrained decisions as it believes that it has lost public support
- ③ Constraining effect of court-curbing legislation will decline as Congress and the Court (policy-) diverge
- ④ Constraining effect of court-curbing legislation will increase as the Court believes that it has lost public support

Clark (2009): Empirics

Empirics:

- Outcome: Federal laws struck down
- Predictors: Court-curbing legislation (original data; logit transformed); Court-public distance; ideological divergence from Congress; fixed effects for natural Courts
- All covariates lagged one period
- Interactions: *Court Curbing* $\times$ *Court Outlook* and *Opposite Party Congress*
- Some robustness checks (continuous measure of Court-Congress distance, etc.)

FIGURE 1 Two-year Moving Average of Court-curbing Bills Introduced in Congress and Federal Laws Invalidated, 1877–2006

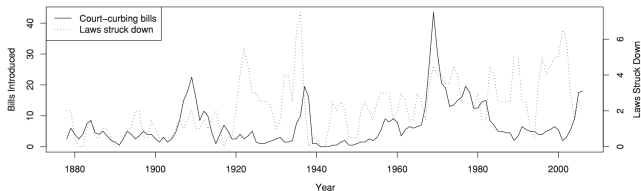


TABLE 1 Effect of Court Curbing on Frequency of Constitutional Invalidations of Acts of Congress

	GSS Measure	Proxy Measure	No Prior Measure	GSS Measure	Proxy Measure
<i>CourtCurbing</i> _{<i>t</i>-1}	-1.53 (0.61)	-1.79 (0.44)	-1.50 (0.46)	-5.00 (2.72)	-1.54 (0.33)
<i>CourtOutlook</i> _{<i>t</i>}	-0.06 (0.03)	-0.76 (0.35)	—	-0.17 (0.11)	-0.73 (0.72)
<i>OppositePartyCongress</i> _{<i>t</i>}	0.10 (0.69)	0.26 (0.70)	-0.10 (0.40)	0.35 (1.04)	0.55 (0.79)
<i>CourtCurbing</i> _{<i>t</i>-1} × <i>CourtOutlook</i> _{<i>t</i>}	—	—	—	0.28 (0.22)	-0.03 (1.80)
<i>CourtCurbing</i> _{<i>t</i>-1} × <i>OppositePartyCongress</i> _{<i>t</i>}	—	—	—	-0.82 (1.43)	-0.70 (1.01)
Constant	2.84 (0.49)	2.04 (0.15)	1.94 (0.15)	4.16 (1.35)	1.97 (0.13)
N	32	50	127	32	50
Overdispersion	$\bar{\chi}^2_{[1]} = 0.00$	$\bar{\chi}^2_{[1]} = 0.00$	$\bar{\chi}^2_{[1]} = 0.00$	$\bar{\chi}^2_{[1]} = 0.00$	$\bar{\chi}^2_{[1]} = 0.00$
Serial Correlation	15.95 $p \leq .32$	32.40 $p \leq .09$	49.53 $p \leq .14$	13.85 $p \leq .46$	32.71 $p \leq .09$

Notes: Dependent variable is number of Acts of Congress invalidated in year *t*; Poisson coefficients shown (standard errors clustered on natural court in parentheses); natural court fixed effects not shown; overdispersion test is likelihood-ratio test of null hypothesis that $\alpha = 0$ and the data satisfy equidispersion assumption; serial correlation test is Portmanteau Q-statistic testing null hypothesis that there is no autocorrelation in the data.

Clark (2009): Conclusions

Highlights:

- “Judicial legitimacy is an important mechanism that drives judicial sensitivity to congressional preferences.”
- “When the Court fears it will lose public support, it will adjust its behavior in light of congressional signals about the Court’s level of public support. However, the magnitude of that effect is mediated by the political context in which those signals are sent. Instead of responding to Court curbing more strongly when it is facing its ideological opponents, the Court responds most strongly when the Court curbing comes from its ideological allies.”
- “Interpreting Court curbing as a primarily position-taking enterprise, rather than an effort to enact legislation, reconceptualizes the role of such activity in the political system.”
- “Judicial self-restraint in the face of institutional signals from democratically elected bodies may potentially ameliorate concerns with the ‘countermajoritarian’ difficulty.”